

Appendix A: Code Redlines

The sections below include the proposed redlines to existing Code language per recommendations in the Analysis and Recommendations section of this report. Text in black represents current Code language with proposed new text in red underline and text to be removed in ~~red strikeout~~. *** indicates text preceding and following the amended text that is not shown and is unchanged. Text in red with yellow highlight is notes to the reader, not meant for inclusion in the Code.

Redlines for Recommendation 1E. Redefine the Community Housing Zone:

5-324 Community Housing (CH)

5-324A Purpose

The purpose of the Community Housing zone district is to provide areas suitable for the development of ~~high-density, clustered~~ housing for people who live and work within San Miguel County. ~~Housing may be in attached or detached single-family homes, duplexes, multi-family buildings, or rooming houses. Development may also include alternative living units such as spaces for RVs, tiny homes or yurts.~~ Dwelling units shall be subject to the County's R-1 Housing Deed Restriction (see Section 5-1304 and 5-1305), ~~except for unless~~ free-market units that may be ~~are~~ allowed within the development.

Properties that may be considered for rezoning to the Community Housing (CH) zone district shall be located within the Telluride R-1 School District boundaries. Zone districts that are most appropriate for rezoning to CH are those that can be served by municipal water ~~and wastewater~~ systems or where community water and wastewater service can be developed., ~~including Low Density (LD), Low Density Residential (LDR), Medium Density (MD), and High Density (HD). The Forestry, Agriculture, and Open (F) zone district may be considered where water can be developed.~~ Properties that are zoned High Country Area (HCA) or Rangeland Grazing (RG) shall not be considered for rezoning to CH. The maximum density of twenty (20) units per acre may be higher than that found in surrounding areas. It is the position of the County that housing for people who live and work in the local communities is a high priority. When rezoning land to the CH zone district, the higher density that may be achieved in that zone shall not be considered incompatible with surrounding land uses, neighborhood characteristics or community character.

Clustered development is encouraged to maintain open space, to be efficient in design and construction of infrastructure, and to mitigate impacts on adjacent properties. Recreational, civic and public uses may be part of the development where appropriate. All development shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, provision of water and wastewater treatment; mitigation of geohazards; site access; and any other applicable site-specific considerations.

All development in the Community Housing zone district is encouraged to include energy efficient design and alternative energy generation such as solar power. Net zero development — producing enough energy through the use of measures such as solar panels, passive design, and other means to offset the energy consumed on an annual basis — is strongly encouraged. Sites that are not suited to net-zero development should strive to be as energy efficient as possible, through design, construction, and building systems.

5-324B Uses Allowed by Right

I. Single-household detached dwelling with three thousand (3,000) sq. ft. of floor area or less;

II. Accessory Dwelling Unit;

III. Customary residential accessory buildings and uses;

IV. Day care homes; and

V. Home occupations.

5-324C Uses Allowed Subject to Administrative Review

I. Temporary Alternative Living Space sites;

II. Day care centers;

III. Public transportation facilities primarily serving the development; and

IV. Public utilities and infrastructure to primarily serve the development.

5-324D Uses Allowed Subject to One-Step Planning Commission Review

I. Dwelling units - on parcels five (5) acres or less:

a. Single-~~familyhousehold~~ dwellings, attached and/or detached with more than 3,000 sq. ft. of floor area;

b. Single-household attached dwellings with three thousand (3,000) sq. ft. of floor area or less;

~~c.~~ Duplexes;

~~d.~~ Multi-~~familyhousehold~~ dwellings;

~~e.~~ Rooming houses;

~~f.~~ RV, tiny home, yurt and other Alternative Living Spaces (no more than twenty percent (20%) of total units);

g. Cohousing; and

h. Cottage housing

II. Churches, community meeting halls, libraries, and other civic and community-serving facilities;

III. Parks, playgrounds, playing fields, and other recreational facilities to serve residents of the development; and

IV. One (1) Free-market (not deed restricted) dwelling unit, similar in size to the deed-restricted dwelling unit(s).

5-234E Uses Subject to Two-Step Special Use Permit Review

- I. Dwelling units - on parcels greater than five (5) acres:
 - a. Single-~~family household~~ dwellings, attached and/or detached;
 - b. Duplexes;
 - c. Multi-~~family household~~ dwellings;
 - d. Rooming houses;
 - e. RV, tiny home, yurt and other Alternative Living Spaces (twenty-one percent (21%) or more of total units);
 - f. Cohousing
 - g. Cottage housing
 - II. Parks, playgrounds, playing fields, and other recreational facilities to serve residents of the development and regional residents;
 - III. Fire stations, schools, and other public facilities and uses; and
 - IV. Free-market (not deed restricted) dwelling units:
 - a. Comprising ten percent (10%) or less of the total units, and ten (10) percent or less of the gross square footage, for a development that is not net zero on an annual basis; or
 - b. Comprising twenty percent (20%) or less of the total units, and twenty (20) percent or less of the gross square footage, for a development that is net zero on an annual basis.
- 5-324F Uses Allowed Subject to Board of County Commissioner Approval Pursuant to Planned Unit Development (PUD) Procedure
- I. Free-market (not deed restricted) dwelling units:
 - a. Comprising eleven percent (11%) or more of the total units for a development that is not net zero on an annual basis; or
 - b. Comprising twenty-one percent (21%) or more of the total units for development that is net zero on an annual basis;
 - II. Neighborhood Commercial Uses that offer goods and services needed by residents of the PUD on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry, medical and dental offices and clinics, and postal service substation; and
 - III. Flex Space.
- 5-324G Area and Bulk Requirements ~~Permitted by Right~~
- I. Maximum Density — twenty (20) units per acre
 - II. Minimum Lot Area — None
 - III. Setbacks

- a. Setbacks from any development to property lines of any abutting parcel zoned other than Community Housing and to any right-of-way—twenty (20) feet;
- b. Front yard — ten (10) feet to adjacent buildings; otherwise, to allow flexibility in the design process, there is no minimum internal front yard setback;
- c. Rear yard — ten (10) feet to adjacent buildings; otherwise, to allow flexibility in the design process, there is no minimum internal rear yard setback;
- d. Side yard:
 - i. Detached Principal buildings — ten (10) feet to adjacent buildings;
 - ii. Attached Principal buildings — zero (0) feet on the attached side(s) and ten (10) feet to adjacent buildings on the detached side.
- e. Accessory buildings — five (5) feet to the nearest building(s), all sides.

IV. Maximum Floor Area:

- a. Principal Dwellings: three thousand (3,000) square feet
- b. Accessory Dwellings: one thousand (1,000) square feet

V. Maximum Building Height:

- a. Thirty-five (35) feet for development that is not net zero on an annual basis and does not meet greater affordability thresholds; or
- b. For development that is net zero on an annual basis, forty-five (45) feet.
- c. Forty (40) feet when 50% of the development meets the following criteria:
 - iii. Rental housing that is affordable, meaning costs less than 30% of the household's income, to households earning at or below one hundred twenty percent (120%) Area Median Income (AMI); or
 - iv. For-sale housing that is affordable, meaning costs less than 30% of the household's income, to households earning at or below two hundred percent (200%) AMI.

VI. Minimum Common Open Space — thirty (30) percent ~~(30%)~~; to be developed as either Active or Passive Open Space.

VII. Minimum Off-street Parking

Clustered parking areas are encouraged. Off-street parking shall be provided for each principal use as required in Section 5-702, with the following exceptions:

- a. Studio and one (1) bedroom dwelling units: one (1) parking space per unit;
- b. All other dwelling units: two (2) spaces per unit;
- c. Rooming house: one (1) parking space per sleeping room, except where the property is served by public transit, in which case the parking requirement shall be two (2) spaces for every three (3) sleeping rooms;

- d. Alternative Living Spaces: one (1) parking space per unit.

5-234H Review Standards

Redlines for Recommendation 2A and 2E.

The following changes are proposed to the existing language in Article 7 – Definitions:

Accessory Dwelling Unit *(move metrics and standards to Section 5-1302)*

~~An additional dwelling unit, limited to a maximum of eight hundred (800) square feet, accessory to a single-family residence in the High Density, Medium Density or Low-Density Zone District. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303G.XIX.~~

A secondary dwelling that is either attached to or detached from the primary single-household residence on a parcel of land zoned for residential use. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation. This type of use is intended to provide a mechanism to help meet the need of affordable housing by allowing accessory residential dwelling units under certain circumstances in areas normally restricted to a single unit, while preserving existing single-household character.

Cohousing *(Moved from Section 5-319.2K)*

A residential development composed of independent dwelling units organized around shared indoor and outdoor common spaces and amenities intended to support community interaction among residents. Each dwelling unit shall contain its own living, sleeping, and sanitation facilities. Cohousing is distinct from a rooming house, boarding house, or other form of group living where residents occupy individual rooms rather than complete dwelling units.

Common Open Space

A parcel of land, area of water, or a combination of land and water within the site ~~designated for a planned unit development~~ designated and intended primarily for the use or enjoyment of residents, occupants and owners ~~of the planned unit development associated with a development or subdivision~~. The common open space presumes Passive Open Space. Recreation Areas or Active Open Space shall be permitted within Common Open Space as allowed by Planning Commission or Board of Commissioner review. Common Open Space is presumed to be private unless otherwise agreed to by the landowner and the Board of Commissioners.

Cottage Housing

A comprehensive development consisting of small, independent dwelling units (cottages) on a single lot. Individual dwelling units are clustered around a shared courtyard (common open space) with off-street parking and access. The development may include shared community facilities.

Note: definitions for all dwelling types are moved under “Dwelling Unit” as follows:

Dwelling Unit

A separately enterable, self-sufficient room or combination of rooms containing kitchen and bath facilities and designed for or used as a residence by an individual, single family, household, or guests, independent of other families, households, or guests.

Dwelling, Duplex Residence

A single structure on a single lot containing two attached dwelling units under common ownership or within a condominium or duplex ownership structure with the units either side-by-side or in an over-under configuration. In the side-by-side configuration, the units share a common wall, while in the over-under configuration, they are stacked. A minimum of twenty percent (20%) of the length of the two (2) walls in common shall be shared between the units, regardless of whether the wall is shared by all floors of the units. The shared walls in common shall not be the walls of a breezeway, or similar accessory structure, but may include the walls of a garage.

Dwelling, Multi-household family Unit

A dwelling unit in a structure containing three (3) or more such dwelling units, not including hotels and lodges, but including town houses, A building containing three (3) or more dwelling units designed for occupancy by multiple households, where units may be arranged side-by-side, stacked vertically, or both, and where dwelling units share common walls, floor/ceiling assemblies, or other common building elements. This use includes apartments and similar residential building types. Multi-household dwellings may include with accessory use facilities limited to an office, laundry, recreation facilities and off-street parking used by the occupants. One (1) or more dwelling units located within an office, retail, or service commercial building, including (a) Live-work Housing unit(s) (See Section 5-1305B.V), shall also be considered (a) multi-family dwelling unit(s).

Single-family Dwelling (same as Single-family Residence)

Dwelling, Single-household Attached

Three (3) or more residential dwelling units arranged side-by-side, where each unit extends from foundation to roof, shares at least one (1) or more common walls with adjacent units, has independent exterior access, and is located on an individually platted lot or is capable of being individually owned.

Dwelling, Single-household Detached family Residence

An individual residential dwelling that is developed with open yards on all sides of the dwelling unit. Single-household detached dwelling family Residence includes all manufactured housing (pursuant to C.R.S. 30-28-115(3)), including all mobile homes on permanent foundations, but does not include recreational or other wheeled vehicles.

Mixed Use Residential

A development that combines housing units with one (1) or more nonresidential uses, such as retail, office, service, civic, or restaurant uses, within the same building or on the same development site.

Rooming House

Any structure where persons are housed ~~for compensation~~, by the day, ~~or~~ week, ~~or~~ month including hotels, motels, lodges, boarding houses ~~and dwellings into which the general public is received~~. Each room intended for sleeping shall be maintained in a clean and sanitary condition and has:

- (1) At least seventy (70) square feet of habitable floor area;
- (2) At least thirty (30) additional square feet of floor space for each additional intended occupant;
~~and~~
- (3) Access to a flush toilet, lavatory, basin, and tub or shower in working order and properly connected to water and sewer systems, with a minimum of one (1) toilet for each four (4) occupants; and

(4) Access to cooking facilities or provision of meals to all occupants.

Sleeping shall not be permitted in the halls of rooming houses without the express permission of the Board of County Commissioners in response to a public emergency.

Secondary Dwelling Unit

A Secondary Dwelling Unit is a second residence on an existing parcel located within the Wright's Mesa (WM) or Wright's Mesa Rural Agriculture (WMRA) zone district. Secondary Dwelling Units may be attached to or detached from the primary residence.

Secondary Residential Unit

A second dwelling unit accessory to the principal single-household unit on the property. See also Accessory Dwelling Unit, Caretaker Unit, and Secondary Dwelling Unit.

Redlines for Recommendation 2D.

5-1302 Subordinate Residential ~~Accessory Dwelling~~ Units

5-1302A. Applicability

Subordinate Residential Units include Accessory Dwelling Units, Caretaker Units, and Secondary Dwelling Units and One (1) accessory dwelling unit per lot or parcel may be approved in certain the HD, MD and LD Zone Districts subject to compliance with the standards in this section and the applicable Zone District. Refer to sections 3-4 and 4-7 for procedures and submission contents.

5-1302B. Accessory Dwelling Unit Standards

- I. An accessory dwelling unit shall not be:
 - a. Rented for a term less than six (6) months.
- II. An accessory dwelling unit shall:
 - a. Provide off-street parking in compliance with Section 5-702;
 - b. Be limited to a maximum floor area of ~~eight hundred (800)~~ one thousand (1,000) square feet;
 - c. Be built in accordance with the County's adopted Building Code;
 - d. Be attached to the main residence, unless either no higher than sixteen (16) feet or located within a customary residential accessory building, such as a garage;
 - e. In combination with the principal residence not exceed the maximum allowable floor area of the applicable zone district; and
 - f. Comply with the San Miguel County Sanitation Regulations.
- III. The floor area of the accessory dwelling unit shall be included in the calculation for employee housing impact fee mitigation as defined in, and is subject to Section 5-13 03G of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303G.XIX.
 - a. Accessory dwelling units (ADU) that are voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit shall be subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305) and ADU Deed Restriction Covenant.

5-1302C. Caretaker Unit Standards *(strike from Section 5-307C.I)*

- I. A Caretaker Unit shall be allowed:
 - a. On all parcels thirty-five (35) acres or larger; and
 - b. On parcels five (5) to thirty-five (35) acres in the Telluride R-1 School District;
 - c. Except no caretaker units shall be allowed in the San Miguel Canyon Area.
- II. A Caretaker Unit shall:
 - a. Be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls);
 - i. The distance to the Caretaker Unit may be increased to four hundred (400) feet if the Caretaker Unit is voluntarily deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305);
 - b. Contain no more than two thousand (2,000) sq. ft. of floor area; and
 - c. Contain full kitchen and bathroom facilities.
- III. A Caretaker Unit shall not be:
 - a. Rented for a term less than six (6) months; and

- b. Conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence.
 - IV. A second Caretaker Unit may be allowed on parcels greater than thirty-five (35) acres provided:
 - a. The property has a domestic well permit issued by the Colorado Division of Water Resources for three (3) dwelling units;
 - b. The second Caretaker Unit shall be voluntarily deed-restricted subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305).
 - V. The Floor Area of the Caretaker Unit shall be included in the calculation for employee housing Impact Fee mitigation as defined in Section 5-1303G of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX.
 - a. Caretaker Units that are voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit shall be subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305) and ADU Deed Restriction Covenant.

5-1302D. Secondary Dwelling Unit Standards *(strike from Section 5-319.1D.I and Section 5-319.2H.II.d)*

- I. A Secondary Dwelling Unit shall be allowed in the Wright's Mesa (WM) and Wright's Mesa Rural Agriculture (WMRA) zone districts on all parcels five (5) acres or larger and subject to the requirements of 5-319.1D if located in the WM zone district and 5-319.2H.II.d if located in the WMRA zone district
- II. A secondary dwelling unit shall:
 - a. Be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls);
 - b. Contain no more than two thousand square feet floor area in the Wright's Mesa (WM) zone district, and no more than two thousand five hundred (2,500) square feet floor area in the Wright's Mesa Rural Agriculture (WMRA) zone district; and
 - c. Contain full kitchen and bathroom facilities.
 - d. A secondary dwelling unit more than three hundred (300) feet from the primary residence shall only be permitted by special use review.
- III. Ownership: Secondary dwelling units shall not be conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence.

Redlines for Recommendation 2E.

5-1010 – Standards for Cohousing *(new section)*

- I. Cohousing shall comply with the following standards:
 - a. Each development shall adhere to the density and dimensional standards per the zone district with a maximum of four (4) people per dwelling unit.
 - b. Each dwelling unit:
 - i. Shall contain private living and sleeping space for the exclusive use of the residents; and
 - ii. May include a kitchenette consisting of a sink, refrigerator, microwave, electric cooktop, or similar limited food preparation facilities, although not required.
 - c. Each cohousing development shall provide one common house or shared facility which shall contain:
 - i. A minimum of fifty (50) square feet of floor area plus (10) square feet per dwelling unit, whichever is greater; and
 - ii. A common kitchen and dining area capable of serving the residents of the cohousing development.
 - iii. The shared facility may also include meeting rooms, recreation space, guest accommodations, coworking space, workshop areas, laundry facilities, or other similar communal amenities.

~~5-319.2.H. Use-Specific Standards~~ **5-1011 – Standards for Cottage Housing** *(moved from Section 5-3 Zone Districts to Section 5-10 Special Uses)*

~~H. Residential~~

~~a. Cottage Housing~~

- I. Cottage housing shall comply with the following standards:
 - a. Lot Area (Minimum and Maximum): Minimum lot area shall be ~~thirty thousand (30,000) twenty thousand (20,000)~~ square feet. ~~Maximum lot area shall be forty-five thousand (45,000) square feet.~~
 - b. Number of Units (Minimum and Maximum): Shall include a minimum of four (4) cottage dwelling units and a maximum of nine (9) cottage dwelling units, all included in one (1) development application.
 - c. Size of Units: ~~A detached~~ Each cottage dwelling unit shall ~~not be greater than eight hundred fifty (850) square feet in lot coverage or have~~ a maximum floor area of one thousand five hundred (1,500) square feet ~~or 1.5 times the lot coverage, whichever is less.~~
 - d. Common Open Space: Each cottage ~~dwelling unit development~~ shall include a minimum of two hundred fifty (250) square feet of common open space per dwelling unit. At least fifty percent (50%) of ~~each the~~ cottage dwelling units shall abut common open space. ~~All cottage dwelling units shall be within sixty~~

~~(60) feet of common open space, and the common open space shall have cottage dwelling units abutting at least fifty percent (50%) of its boundaries.~~

- e. ~~All common open space shall be held in common ownership by a legal instrument such as an easement or deed restriction that guarantees access and use by all properties in the cottage housing development.~~
- f. ~~Cottage housing development must prove adequate provision of water, wastewater, and utility services necessary to support additional units without straining existing infrastructure.~~

Redlines for Recommendations 1A, 1B, 1C, 1D, 2B, 2C, and 4B.

5-302 High Density (HD)

5-302A. Purpose

- I. The purpose of the High Density (HD) Zone District is to provide areas suitable for high density, clustered, mixed-use development in accordance with the East End Master Plan. The Master Plan includes an analysis of the East End's physical characteristics and the capability of the community to provide essential public services. ~~The HD Zone District also provides a high density and mixed use development alternative to low density development as an incentive for the preservation of substantially more open space than could reasonably be required as part of a lower density development.~~ Clustering of ~~development~~ residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.
- II. Minimum requirements for approval of the residential densities and the nonresidential land uses allowed in the Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, the provision of alternate transportation, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). ~~In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, non-environmentally sensitive lands will remain zoned either LD or PUDR and therefore will be subject to the standards of the applicable district; and environmentally sensitive lands will remain zoned either OS or PUDR and therefore will be subject to the standards of the applicable district.~~

5-302B. ~~Planned Unit Development (PUD) Procedure~~

~~All development proposed within the HD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from area and bulk requirements. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD standards.~~

5-302~~BE~~. Uses Allowed by Right

- I. Single-~~family household detached~~ dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.
 - a. For Single-~~family household detached~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant requirement, the applicant shall provide a written approval of the proposed building plan from the HOA as part of their Development Permit application;
- II. Customary residential accessory buildings and uses;
- III. Day care homes; ~~and~~
- IV. Home occupations; ~~and~~
- V. Accessory dwelling unit

5-302D. Uses Allowed Subject to Administrative Review

- ~~I. Accessory Dwelling Units. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX; and~~
- II. Day care centers - allowed only on lots of at least one-half (1/2) acre;:-
- II. Duplex on parcels less than or equal to five (5) acres; and
- III. Transportation terminals.

5-302E. Uses Allowed Subject to One-step Planning Commission Review

- I. On parcels five (5) acres or less in size, the following shall be allowed by one-step Planning Commission review:
 - a. Single-household Attached Dwellings;
 - b. Rooming houses;
 - c. Cohousing;
 - d. Cottage housing;
 - e. RV, tiny home, yurt and other alternative living spaces (no more than twenty percent (20%) of total units)

5-302F. Uses Allowed Subject to Two-step Special Use Permit Review

- I. Single-household Dwellings (attached or detached) and Duplex Dwellings greater than twelve thousand (12,000) sq. ft.
 - a. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and

ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand hundred (1,000) sq. ft.

II. Duplex residences on parcels greater than five (5) acres;

IV. Multi-household residences;

V. Rooming Houses on parcels greater than five (5) acres;

VI. Cohousing on parcels greater than five (5) acres;

VII. Cottage Housing on parcels greater than five (5) acres;

VIII. RV, tiny home, yurt and other alternative living spaces (no more than twenty percent(20%) of total units) on parcels greater than five (5) acres;

IX. Churches;

X. Fire stations;

5-302GE. Uses Allowed Subject to Board of County Commissioner Approval Pursuant to Planned Unit Development (PUD) Procedure

~~I. Duplex residences;~~

~~II. Multi-family residences;~~

~~III. Tourist accommodations;~~

~~IIIV. Commercial uses and personal services including the following and similar types of uses: clothing, hardware, drug, liquor, record, sporting goods, electronic and computer stores; barber or beauty shops, restaurant, cocktail lounge, movie theater, health club, grocery store of less than twelve thousand (12,000) square feet, dry cleaning and laundry pick-up station, laundromat, delicatessen, post office branch, television sales and service shop, shoe repair shop, camera and video rental and sale shop and gasoline service station without repair facilities; nothing to the contrary withstanding, no use shall be allowed that is incompatible with the nature of the applicable development;~~

~~IIIV. Conference facilities;~~

~~IIIV. Offices and financial institutions; and~~

~~VII. Transportation terminals;~~

~~VIII. Churches; and~~

~~IVIX. Fire stations, Schools and hospitals.~~

5-302HF. Area and Bulk Requirements Permitted by Right

I. Density - ~~one (1) dwelling unit per lot~~ fifteen (15) dwelling units per acre with the following possible density bonuses:

a. Increase of twenty-five percent (25%) for a maximum of nineteen (19) dwelling units per acre if thirty-three to forty percent (33-40%) of the total units are deed restricted.

- b. Increase of thirty-five percent (35%) for a maximum of twenty (20) dwelling units per acre if forty-one to fifty percent (41-50%) of the total units are deed restricted.
- c. Increase of fifty percent (50%) for a maximum of twenty-two and a half (22.5) dwelling units per acre if fifty-one percent (51%) or more of the total units are deed restricted.

II. Minimum Lot Area:→

- a. thirty-five (35) acres for properties served by well and OWTS;
- b. Two (2) acres for properties served by public water and OWTS;
- c. Three thousand (3,000) sq. ft. if connected to public water and sewer.

III. Setbacks

- a. Front yard - ~~thirty (30) feet~~ fifteen (15) feet for front loaded lots, ten (10) feet for alley loaded lots
- b. Rear yard - ~~thirty (30) feet~~ fifteen (15) feet
- c. Side yard - ~~thirty (30) feet~~ twelve and a half (12.5) feet
- d. The perimeter of multi-household dwelling and cottage housing developments shall maintain a fifteen (15) foot setback from adjacent properties.

I. Maximum Building Height - thirty-five (35) feet

5-302 ~~I~~**G**. Density, Area and Bulk Requirements Permitted Subject to Board of County Commissioner Approval Pursuant to the Planned Unit Development (PUD) Procedure

I. Density for ~~Residential and~~ Tourist Accommodation Units

Maximum Density - ~~eighty (80) persons per acre~~ Determined pursuant to Section 5-14.

~~Minimum Density - forty (40) persons per acre~~

~~The density of residential and tourist accommodation development may not be greater than forty (40) people per acre. Density is based upon the cumulative number of people to be housed as determined by the "population level" standards (see definition in Article 6):~~

II. Density for Commercial Development

III. Minimum lot area - Determined pursuant to Section 5-14

~~IV~~III. Setbacks - Determined pursuant to Section 5-14

~~V~~IV. Maximum Building Height - Determined pursuant to Section 5-14

~~VI.~~ Maximum Floor Area Ratio (FAR) - Determined pursuant to Section 5-14

5-302 ~~J~~**H**. Minimum Common Open Space - thirty percent (30%)

5-302 ~~K~~**I**. Minimum Off-street Parking

Off-street parking shall be provided for each use as required in Section 5-702.

5-302L. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Section 5-302G-E or approval to utilize the area and bulk requirements in Section 5-302I-G must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this section:

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and to insure the protection of the public health, safety and welfare in the region;
- III. Adequate mitigation by the applicant of the incremental impacts on the community's existing public services;
- IV. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;
- V. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- VI. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VII. Acceptable guarantees that fulfill the criteria set forth in the East End Master Plan have been made for the provision of:
 - a. Adequate alternate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304);
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VIII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

~~5-302K. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307L.~~

- ~~I. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-303 Medium Density (MD)

5-303A. Purpose

- I. The purpose of the Medium Density (MD) Zone District is to provide areas suitable for clustered medium density residential development in accordance with the San Miguel County Comprehensive Development Plan. The East End Master Plan includes an analysis of the East End's physical characteristics and the capability of the community to provide essential public services. Due to consideration of such factors as neighborhood compatibility, availability of community services and road capacities, lands zoned MD are capable of accommodating higher density development than can lands zoned LD. Clustering of residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.
- II. Minimum requirements for approval of the residential densities proposed for the MD Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, provision of alternate transportation, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). ~~In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, non-environmentally sensitive lands will remain zoned either LD or PUDR and therefore will be subject to the standards of the applicable district, and environmentally sensitive lands will remain zoned either OS or PUDR and therefore will be subject to the standards of the applicable district.~~

5-303B. Planned Unit Development (PUD) Procedure

~~All development proposed within the MD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from the area and bulk requirements established in this Section. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD Standards.~~

5-303BE. Uses Allowed by Right

- I. Single-~~family household~~ Detached dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.
 - a. For Single-~~family household~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant

requirement, the applicant shall provide a written approval of the proposed building plan from the HOA as part of their Development Permit application;

- II. Customary residential accessory buildings and uses;
- III. Day care homes; ~~and~~
- IV. Home occupations-; ~~and~~
- V. Accessory dwelling unit.

5-303~~C~~D. Uses Allowed Subject to Administrative Review

~~I.—Accessory Dwelling Units. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX; and~~

I. Duplex dwellings;

II. Day care centers - allowed only on lots of at least one-half ~~(1/2)~~ acre; ~~and-~~

III. Transportation terminals.

5-303D. Uses Allowed Subject to One-step Planning Commission Review

I. Single-household Attached dwellings with eight (8) or fewer units;

5-303E. Uses Allowed Subject to Two-step Special Use Permit Review

I. Single-household Dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.

a. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.

II. Single-household attached dwellings with nine (9) to twelve (12) units;

III. Cottage housing

IV. Cohousing; and

V. Multi-household dwellings with twenty (20) units or less;

VI. Fire stations; and

VII. Churches.

5-303~~FE~~. Uses Allowed Subject to Board of County Commissioner Approval Pursuant to the Planned Unit Development (PUD) Procedure

~~I.—Duplex residences;~~

~~II.—Multi-family residences;~~

- ~~III.~~ Tourist accommodations;
- ~~IIIV.~~ Commercial uses including the following and similar: drug, liquor and sporting goods stores, barber and beauty shops, restaurants, cocktail lounges, clothing, electronic, camera and video rental stores, dry cleaning and laundry pick-up stations, gasoline service stations, and grocery store less than three thousand (3,000) square feet; nothing to the contrary withstanding, no use shall be allowed that is incompatible with the nature of the applicable development;
- ~~V. — Transportation terminats;~~
- ~~VI. — Fire stations;~~
- ~~IV/VII.~~ Elementary, junior and senior high schools; ~~and~~
- ~~VIII.~~ Hospitals., ~~and~~
- ~~IX. — Churches.~~

5-303 ~~GF.~~ Area and Bulk Requirements Permitted by Right

- I. Density - one (1) dwelling unit per ~~lot three (3) acres with the following possible density bonuses:~~
 - a. ~~Increase of twenty-five percent (25%) for a maximum of one dwelling unit per two and four tenths (2.4) acres if thirty-three to forty percent (33-40%) of the total units are deed restricted.~~
 - b. ~~Increase of thirty-five percent (35%) for a maximum of one dwelling unit per two and two tenths (2.2) acres if forty-one to fifty percent (41-50%) of the total units are deed restricted.~~
 - c. ~~Increase of 50% for a maximum of one dwelling unit per two (2) acres if 51% or more of the total units are deed restricted.~~
- I. Minimum Lot Area: ~~—~~
 - a. ~~Thirty-five (35) acres for properties served by well and OWTS;~~
 - b. ~~Three (3) acres for lots served by public water and OWTS;~~
 - c. ~~Six thousand (6,000) square feet if connected to public water and sewer.~~
- II. Setbacks
 - a. Front yard - ~~thirty (30) feet~~ twenty (20) feet, may be reduced to ten (10 feet for alley loaded lots
 - b. Rear yard - ~~twenty (20) feet~~ twenty (20) feet
 - c. Side yard - ~~twenty (20) feet~~ twelve and a half (12.5) feet
- III. Maximum Building Height - thirty-five (35) feet

5-303 ~~HG.~~ Density, Area and Bulk Requirements Permitted Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure.

Maximum density will be determined pursuant to the standards established in Section 5-1403 F.

I. Density for Uses Permitted by PUD

Maximum overall residential density - one (1) unit per three (3) acres

I. Minimum Lot Area for lots final platted or replatted following the adoption of this Land Use Code:

- a. Single-family household dwellings - fifteen thousand (15,000) sq. ft.
- b. Duplex dwellings - twenty thousand (20,000) sq. ft.
- c. Multi-family household dwellings - twenty thousand (20,000) sq. ft.
- d. Tourist Accommodations - twenty thousand (20,000) sq. ft.
- e. Commercial buildings - ten thousand (10,000) sq. ft.
- f. Public buildings - twenty thousand (20,000) sq. ft.

II. Setbacks for all buildings located on lots final platted or replatted prior to the adoption of this Land Use Code:

- a. Front yard - twenty-five (25) feet
- b. Rear yard - twenty (20) feet
- c. Side yard - twelve point five (12.5) feet

III. Maximum Building Height - thirty-five (35) feet

IV. Maximum Floor Area Ratio (FAR) - Determined pursuant to Section 5-14

5-303H. Minimum Common Open Space - sixty percent (60%)

5-303J. Minimum Off-street Parking

Off-street parking shall be provided for each principal use as required in Section 5-702.

5-303K. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Section 5-303 E or approval to utilize the area and bulk requirements in Section 5-303 G must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this section:

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and an applicant adequately mitigates the incremental impacts on the community's existing public services;
- III. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;

- IV. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- V. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VI. Acceptable guarantees (as described in the East End Master Plan) have been made for the provision of:
 - a. Adequate alternate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304); and
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

~~5-303K. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family Dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307L.~~

- ~~I. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-304 Low Density (LD)

5-304A. Purpose

- I. The purpose of the Low Density (LD) Zone District is to provide areas suitable for clustered, low-density residential development in accordance with the San Miguel County Comprehensive Development Plan. ~~The LD Zone District applies to areas so zoned already; it shall not provide a mechanism for rezoning areas not currently so zoned.~~ The East End Master Plan includes an analysis of the region's physical characteristics and the capability of the community to provide essential public services. If land is developed under the LD Zone District, the rural characteristics of the land shall be preserved to the maximum extent possible by careful site planning and, if necessary, the clustering of development. Clustering of residential uses will be required to preserve environmentally sensitive lands and the scenic foreground as open space.

- II. Minimum requirements for approval of the residential densities proposed for the LD Zone District shall include appropriate guarantees for the protection of public health, safety and welfare, which shall include, but are not limited to, provision of transportation (capital, facilities and equipment) necessary to serve the development, long-term operation and maintenance of the regional transportation system, recreational amenities and affordable housing, as described in the East End Master Plan and in this Code (see Sections 5-13 and 5-20). In the absence of such guarantees and in the absence of the fulfillment of the other requirements set forth in the PUD process, all lands will be subject to the standards for uses and area and bulk requirements allowed by right.

~~5-304B. Planned Unit Development (PUD) Procedure—~~

~~All development proposed within the LD Zone District, except for proposed development of uses allowed by right, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure to establish permitted uses and to allow variation from the area and bulk requirements established in this Section. Refer to Section 3-7 for PUD procedure and Section 5-14 for PUD Standards.—~~

5-304~~B~~E. Uses Allowed by Right

- I. Single-~~family household~~ dwellings with less than twelve thousand (12,000) sq. ft. of Floor Area.

a. For Single-~~family household~~ dwellings with greater than five thousand (5,000) sq. ft. of Floor Area but less than twelve thousand (12,000) sq. ft. of Floor Area: if the proposed residence is located within a subdivision or PUD with an established Home Owner's Association (HOA) that is responsible for administering an applicable design review board general declaration covenant requirement, the applicant shall provide a written approval of the proposed building plan from the HOA as part of their Development Permit application;

- II. Customary residential accessory buildings and uses;

- III. Day care homes; ~~and~~

- IV. Home occupations-; ~~and~~

- V. Accessory dwelling unit

5-304~~C~~D. Uses Allowed Subject to Administrative Review

~~I.—Accessory Dwelling Units. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX; and—~~

- I. Day care centers - allowed only on lots of at least one (1) acre.

5-304~~D~~E. Uses Allowed Subject to One-step Planning Commission Review

- I. Equestrian Centers (see Section 5-24); ~~and~~

- II. Duplex dwelling with less than twelve thousand (12,000) square feet of total floor area.

5-304E. Uses Allowed Subject to Two-step Special Use Permit Review

- I. Single-household dwellings greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.
 - a. Such single-household dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than one thousand (1,000) sq. ft.
- II. Fire stations; and
- III. Churches.

5-304F. Uses Allowed Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

- ~~I. Fire stations;~~
- ~~II. Duplex dwellings;~~
- ~~III. Churches; and~~
- IV. Neighborhood Commercial Uses that offer goods and services needed by residents of the PUD on a daily or frequent basis, including convenience store, drug store, liquor store, self-service laundry and postal service substation.

5-304G. Area and Bulk Requirements Permitted by Right

- I. Density - one (1) dwelling unit per ~~lot~~ seven (7) acres
- II. Minimum Lot Area - ~~thirty-five (35) acres~~ seven (7) acres with the following possible density bonuses:
 - d. Increase of 25% for a maximum of one dwelling unit per five and six tenths (5.6) acres if 37% of the total units are deed restricted.
 - e. Increase of 35% for a maximum of one dwelling unit per five and two tenths (5.2) acres if 38-50% of the total units are deed restricted.
 - f. Increase of 50% for a maximum of one dwelling unit per four and seven tenths (4.7) if 51% or more of the total units are deed restricted.
- II. Setbacks
 - a. Front yard - ~~fifty (50) feet~~ twenty five (25) feet
 - b. Rear yard - ~~fifty (50) feet~~ twenty five (25) feet
 - c. c. Side yard - ~~fifty (50) feet~~ twenty five (25) feet
- III. Maximum Building Height - ~~thirty-five (35) feet~~

5-304H. Area and Bulk Requirements Permitted Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

- I. Maximum Density - one (1) unit per seven (7) acres
- II. Setbacks
 - a. Front yard - Determined pursuant to PUD procedure
 - b. Rear yard - Determined pursuant to PUD procedure
 - c. Side yard - Determined pursuant to PUD procedure
- III. Maximum Building Height - thirty-five (35) feet

5-304I. Review Standards for Land Uses and Area and Bulk Requirements Requiring Board of County Commissioner Approval pursuant to the Planned Unit Development (PUD) Procedure

An applicant seeking approval for any of the uses listed in Sections 5-304 F or approval to utilize the area and bulk requirements in Section 5-304 ~~HE~~ must demonstrate to the satisfaction of the Board of County Commissioners substantial compliance with the standards in this Section.

- I. The use is consistent with the Land Use Policies (Article 2);
- II. Adequate public services such as roads, water, wastewater, public safety and fire protection are available to serve the proposed use and an applicant adequately mitigates the incremental impacts on the community's existing public services;
- III. The use minimizes or mitigates any materially adverse environmental impacts and generally utilizes the most environmentally suitable site;
- IV. Any proposed structures are located outside the Scenic Foreground Overlay Zone District or are designed consistently with the Scenic Foreground Overlay standards;
- V. The use is consistent with the relevant goals and objectives of the San Miguel County Comprehensive Development Plan;
- VI. Acceptable guarantees (as described in the East End Master Plan) have been made for the provision of:
 - a. Adequate transportation to serve the development (see Section 5-2001);
 - b. A sufficient quantity and quality of affordable housing to house the employees attributable to the proposed land use (see Section 5-1304); and
 - c. A sufficient quantity and quality of recreational amenities to serve the residents of the development without overburdening existing off-site recreational facilities (see Section 5-803); and
- VII. Any neighborhood commercial services are designed and planned to be compatible with the surrounding neighborhood (see Section 5-1403 B) to reduce traffic generation, mitigate traffic circulation and parking problems and serve the daily or frequent trade or service needs of the neighborhood.

5-304J. Minimum Common Open Space - sixty percent (60%)

5-304K. Minimum Off-street Parking

Off-street parking shall be provided for each use as required in Section 5-702.

~~5-304L. Uses Allowed Subject to Two-step Special Use Permit Review~~

~~Single-family greater than twelve thousand (12,000) sq. ft. require Planning Commission and Board of Commissioner Special Use Permit review pursuant to Section 5-307 L.~~

~~I. Such dwellings must include one (1) Accessory Dwelling Unit, as provided in Section 5-1302 B.II.g subject to County R-1 Housing Deed Restriction and ADU Deed Restriction Covenant, of at least seven hundred (700) sq. ft. but no greater than eight hundred (800) sq. ft.~~

5-319.2 Wright's Mesa Zone Districts

5-319.2D Purposes

- I. Wright's Mesa Rural Agricultural (WMRA) – *No changes to this section*
- II. Wright's Mesa Rural Residential (WMRR) - *No changes to this section*
- III. Wright's Mesa Light Industrial (WMLI)

The Wright's Mesa Light Industrial (WMLI) district is established to implement the "Town Light Industrial" land use classification in the Wright's Mesa Master Plan. The district is intended to apply to county parcels that have been identified as appropriate for light industrial development currently outside town limits but within the Town of Norwood Master Plan Boundary. The district is intended to allow for the development of small-scale and relatively low-impact manufacturing and processing uses, offices, business services, ~~live-work units mixed-use residential~~, civic uses, and other uses compatible with the small-town character of Norwood, in locations where uses and activities can be efficiently served by the Town of Norwood, Norwood Sanitation District, and Norwood Water Commission. This district is near the downtown commercial area and at the edge of town residential areas, where town-level residential and commercial should occur. Therefore, commercial and residential uses in this district require greater review process than light industrial uses. Developers seeking higher density or variation in permitted uses or area and bulk requirements shall use the Planned Unit Development (PUD) process and must demonstrate legal and physically adequate water and sewer services. The district's location allows for the expansion of Norwood in a compact and orderly fashion. It is also intended to ensure general consistency with the Town of Norwood's Major Streets and Future Land Use Plan. Prior to rezoning parcels to the WMLI district, the county will encourage landowners to seek annexation into the Town or enter into a pre-annexation agreement with the Town of Norwood.

IV. Wright's Mesa Town Residential (WMTR)

The Wright's Mesa Town Residential (WMTR) district is established to implement the "Town Residential" land use classification in the Wright's Mesa Master Plan. The district is intended to apply to county parcels that have been identified as appropriate for town-level residential development within the Town of Norwood Master Plan Boundary. "Town-level residential development" is consistent with Town of Norwood residential development densities and all other standards, including paving standards for streets and sidewalks. Developers seeking higher density or variation in permitted uses or area and bulk requirements shall use the Planned Unit Development (PUD) process and must demonstrate legal and physically adequate water and sewer services. The WMTR zone district is determined to be necessary and suitable for future town uses and can be efficiently served by the Town of Norwood, Norwood Sanitation District, and Norwood Water Commission. It is also consistent with the Town of Norwood's Major Streets and Future Land Use Plan. Prior to rezoning parcels to the WMTR district, the eCounty will encourage landowners to seek annexation into the Town or enter into a pre-annexation agreement with the Town of Norwood.

5-319.2E. Allowed Uses

RESIDENTIAL USES						
USE CATEGORY	USE TYPE	WMRA	WMRR	WMLI	WMTR	USE SPECIFIC STANDARDS
Household Living	Dwelling, Single-family household (manufactured and mobile homes on permanent foundations)	P-D	P-D	P-D	P-D	
	Dwelling, Cottage Housing				S-2	Section 5-319.2 H.II.a.
	Dwelling, Duplex				P-D	
	Dwelling, Live/work Mixed-Use Residential			P-D		Section 5-319.2 H.II.b.

RESIDENTIAL USES						
USE CATEGORY	USE TYPE	WMRA	WMRR	WMLI	WMTR	USE SPECIFIC STANDARDS
	Dwelling, Multi-family household				S-2	Section 5-319.2 H.II.c.
	Secondary Dwelling Unit	P-D				Section 5-319.2 H.II.d., Section 5-1302
	Accessory Dwelling Unit		P-D		P-D	Section 5-1302
	Accessory shed or outbuilding (200 sf or less in residential district)	P	P	P	P	
Group Living	Boarding or Rooming House				S-1	Section 5-319.2 H.II.e.
	Cohousing		S-2		S-1	Section 5-319.2 H.II.f.
	Convent or Monastery	S-1				
	Nursing Home				S-1	
ACCESSORY USES						
	Accessory Use/Structure	A-	A-D	A-D	A-D	
	Dwelling, Alley House				A-D	Section 5-319.2 H.VI.a

RESIDENTIAL USES						
USE CATEGORY	USE TYPE	WMRA	WMRR	WMLI	WMTR	USE SPECIFIC STANDARDS
	Caretaker or Guard Residence				A-D	
	Home occupation (accessory to Single- family <u>household</u> Dwelling)					Section <u>5-319.2</u> F.I. *Building Permit may be required

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
MINIMUM LOT AREA				
Non-residential uses or group living	35 acres except for OLP and subdivision exemption	As previously platted	6,000 sf.	
Single- family household or duplex—no duplex in WMRA	35 acres except for OLP and subdivision exemption	As previously platted	5,000 sf.	5,000 sf
Multi- family household or cottage housing				2,500 sf (allowed by PUD)
Alley House, accessory use				7,500 sf (for Single- family household Dwelling and Alley House)
MAXIMUM LOT AREA				
Principal Use	n/a	n/a	n/a	10,000 sf
MINIMUM LOT WIDTH				
Non-residential uses of group living	50 ft	50 ft	50 ft	
Single- family household	50 ft	50 ft	48 ft	48 ft
Multi- family household				60 ft
Cottage housing				35 ft (allowed by PUD)
MINIMUM SETBACKS				
Front	30 ft	10 ft	15 ft	15 ft

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
Side	20 ft	10 ft	10 ft	10 ft. (no less than 5 ft for Cottage Housing allowed by PUD)
Rear	20 ft	10 ft	10 ft	Zero for Single- family household ; 10 ft for Multi- family household and Alley Houses; 5 ft (no less than 5 ft for Cottage Housing allowed by PUD) when rear yard is adjacent to an alley
MAXIMUM HEIGHT OF BUILDINGS				
Primary Use	35 ft	35 ft	30 ft	25 ft
Accessory Use	35 ft	35 ft	30 ft	18 ft
MAXIMUM LOT COVERAGE				
All Uses	n/a	n/a	50%	25%
Cottage Housing				40% for Single- family household and Cottage Housing (allowed through PUD)
Single- family household with Alley House accessory				50% or 5,000 ft, whichever is less
Planned Unit Development			80%	80%
MINIMUM FLOOR AREA PER UNIT				

TABLE 5-319.2-4: AREA AND BULK REQUIREMENTS				
	WMRA	WMRR	WMLI	WMTR
Non-residential uses	No Minimum	No Minimum	No Minimum	
Single- family household	No Minimum	No Minimum	800 sf GFA	800 sf GFA
Duplex			500 sf GFA	500 sf GFA
Cottage				500 sf GFA (allowed by PUD)
Multi- family household or Alley Houses				350 sf GFA (allowed by PUD)
OFF-STREET PARKING				
Shall be provided for each use as required in Section 5-702				

5-309 - Low Intensity Industrial (I)

5-309A. Purpose

The Low Intensity Industrial (I) Zone District is intended to provide for the establishment of non-polluting manufacturing, warehouse, research and repair facilities. The I Zone District also is intended to accommodate retail uses accessory to primary non-retail uses.

5-309B. Uses Allowed by Right

- I. Single-~~family~~ household dwellings; and
- II. Day care homes.

5-309C. Area and Bulk Requirements Permitted by Right

- I. Minimum Lot Area - thirty-five (35) acres
- II. Setbacks
 - a. Front yard - fifty (50) feet
 - b. Rear yard - thirty (30) feet
 - c. Side yard - twenty (20) feet
- III. Maximum Building Height - thirty-five (35) feet

5-309D. Uses Allowed Subject to Board of County Commissioners Approval Pursuant to the Planned Unit Development (PUD) Procedure

Uses allowed include, but are not limited to the following and similar types of uses:

- I. All uses allowed in the HC Zone District;
- II. Appliance and equipment rental, storage and repair;
- III. Automobile washing facilities;
- IV. Electrical and plumbing service shops;
- V. Commercial bakeries;
- VI. Computer product sales and service;
- VII. Printing and publishing plants;
- VIII. Telecommunications supply;
- IX. Utility service facilities;
- X. Day care centers - allowed only lots of at least one (1) acre;
- XI. Affordable Housing, accessory to a principal use, for persons employed within the PUD, and ~~Mixed-Use Residential Live-work Housing (as defined in Section 5-1305-B.X)~~; and
- XII. Business and Professional Offices.

No additional changes to Section 5-309

5-307 Forestry, Agriculture and Open (F)

5-307A. Purpose

The Forestry, Agriculture and Open (F) Zone District is intended to preserve large, relatively remote areas of the County for resource, agricultural, open space and recreational purposes. These areas currently have minimum public facilities and services and are considered inappropriate for substantial development. Development activities in these areas should be limited to the minimal list of activities that are allowed under State and Federal laws. All permitted development should fully mitigate the effects of such development upon the environment and on the County's budget. Development and/or special uses are encouraged to be located outside environmentally sensitive land.

5-307B. Uses Allowed by Right

- I. Single-~~family household~~ dwellings with less than twelve thousand (12,000) sq. ft. of floor area, mobile homes and accessory uses and accessory buildings with footprints less than three thousand (3,000) sq. ft. (if such buildings and uses are not part of normal and customary agriculture and ranching activities);

- II. Day care homes;
- III. Logging operations resulting in hauling of up to five thousand (5,000) board feet in any 12-month period beginning with commencement of hauling;
- IV. Normal and customary agriculture and ranching activities; and
- V. Home Occupations.

5-307C. Uses Allowed Subject to Administrative Review

- † Caretaker unit - ~~a second two additional~~ residential units may be allowed on all parcels, thirty-five (35) acres or larger; and on parcels five (5) to thirty-five (35) acres in the Telluride R-1 School District, except no caretaker units shall be allowed in the San Miguel Canyon Area. ~~See Section 5-1302C for standards. Such unit shall be attached to or located within three hundred (300) feet of the primary residence (as measured between the closest exterior walls). Such unit shall contain no more than two thousand (2,000) sq. ft. of floor area, and shall contain full kitchen and bathroom facilities. The Floor Area of the caretaker unit shall be included in the calculation for employee housing Impact Fee mitigation as defined in Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303 G.XIX. No lease or rental of a caretaker unit shall be for a term less than six (6) months. Caretaker units shall not be conveyed or sold separately from the remainder of the parcel and shall remain under the same ownership as the primary residence;~~
- II. Day care centers - allowed only on parcels of at least two (2) acres;
- III. Ski area trails and slopes. The Planning Director shall require the developer to demonstrate that off-site impacts are mitigated in accordance with the standards in Section 5-10. If the impact mitigation plan does not meet these standards, the development shall be subject to One-step Planning Commission Review pursuant to Section 5-10;
- IV. Logging operations resulting in hauling of between five thousand (5,000) and three hundred thousand (300,000) board feet in any 12-month period beginning with commencement of hauling; and
- V. Minor Oil and Gas exploration, drilling and pipelines, including wells, and geophysical operations (refer to Section 5-26).

5-307D. Uses Allowed Subject to One-step Planning Commission Review

- I. Parks, playgrounds, playing fields, tennis courts, outdoor ice-skating rinks and swimming pools;
- II. Churches and community meeting halls, libraries or other civic facilities;
- III. Lumber mills;
- IV. Horseback riding and sleigh ride operations, and outdoor recreation areas and campgrounds (subject to compliance with Standards in Section 5-1008);

- V. Cemeteries subject to Section 5-307 K and wind turbines for residential use over thirty-five (35) feet in height;
 - VI. Junkyard, including garbage dump and sanitary fill, subject to C.R.S. 43-1-501, et seq.;
 - VII. Hunting Lodges;
 - VIII. Bed and Breakfasts, subject to Section 5-307 I;
 - IX. Construction/Contractor Office and Staging Area;
 - X. Private Schools;
 - XI. Accessory Structure with a footprint greater than three thousand (3,000) sq. ft. (if such structure is not part of normal and customary agriculture and ranching activities); and
 - XII. Social and Scenic Uses, such as a location for weddings, meetings, retreats, reunions, video and film photo shoots and commercials, on parcels containing thirty-five (35) acres or more, and with attendance of two hundred (200) or fewer guests.
- 5-307E. Uses Allowed Subject to One-step Board of County Commissioner Review
- I. Open Land Protection, subject to the standards in Section 5-1207.
 - II. Logging operations resulting in hauling of more than three hundred thousand (300,000) board feet in any 12-month period beginning with commencement of hauling, in accordance with all provisions of Sections 5-10 and 5-17.
- 5-307F. Uses Allowed Subject to Two-step Special Use Permit Review
- I. Water treatment plants;
 - II. Airports, sanitary landfill operations and sewage disposal areas, subject to Section 5-307 K;
 - III. Kennels and veterinary hospitals;
 - IV. New ski area base facilities (also subject to the provisions of Section 5-1303 D.I), ski lifts and related buildings, parking and incidental facilities (also subject to the provisions of Section 5-1303 D.II);
 - V. Public utility structures, including dams and reservoirs (refer to Section 5-709);
 - VI. Music or other festivals with anticipated attendance of more than two hundred (200) people;
 - VII. Hotels, subject to Section 5-307 I;
 - VIII. Aircraft Landing Areas;
 - IX. Wind Turbines for commercial uses;

- X. Golf Courses subject to a conceptual joint work session with the Planning Commission and Board of Commissioners prior to the applicant submitting engineering documents and survey drawings (subject to compliance with Standards in Section 5-1004);
- XI. Single-~~family household~~ Dwellings greater than twelve thousand (12,000) sq. ft. of Floor Area on a minimum of thirty-five (35) acres shall comply with the standards in Section 5-307 L. (LUC Section 5-10 does not apply).
- XII. Major Oil and Gas Facilities, including compressor stations, gas treatment facilities and pipelines (refer to Section 5-26).
- XIII. Conditional Uses on Federal Lands subject to Section 5-11, Article 6, and applicable State and Federal statutes and regulations.
- XIV. Social and Scenic Uses, such as a location for weddings, meetings, retreats, reunions, video and film photo shoots and commercials, on parcels containing thirty-five (35) acres or more, and with attendance of more than two hundred (200) guests.

XV. Cohousing Units

5-307G. Area and Bulk Requirements

- I. a. The minimum lot size for each principal use is thirty-five (35) acres except for single-~~family household~~ residential dwellings approved pursuant to the subdivision exemption standards for Open Land Protection (see Section 5-1207).
d. Any legally created parcel less than thirty-five (35) acres in the F Zone District may qualify for a building permit for one (1) single-~~family household~~ dwelling unit, provided the parcel meets the criteria set forth in Section 5-1908.
- II. Minimum Setbacks
 - a. Front Yard - thirty (30) feet
 - b. Side Yard - twenty (20) feet
 - c. Rear Yard - twenty (20) feet
- III. Maximum Height of Buildings - thirty-five (35) feet

5-307H. Minimum Off-street Parking

Off-street parking shall be provided for each principal use as required in Section 5-702.

5-307I. Hotel, Guest Ranch, and Bed and Breakfast Standards for the F Zone District. In addition to complying with the standards for special uses in Section 5-10, hotels shall comply with the standards in this section:

- I. Neither activity nor traffic associated with a hotel may materially and/or substantially adversely affect ranching or farming operations, residences or scenic quality of land surrounding State or County roads;

- II. All hotel buildings must comply with the setbacks and height restrictions;
 - III. Minimum Lot Size - forty (40) acres;
 - IV. Maximum occupancy may be limited depending upon impacts on surrounding property;
 - V. Accessory facilities within the hotel complex may include restrooms and showers;
 - VI. Full meals must be provided for overnight guests and may be provided for others;
 - VII. All exterior lighting shall comply with the standards of Section 5-710;
 - VIII. Affordable housing for hotel employees may be allowed as an accessory use;
 - IX. Any other conditions necessary to preserve the character of the F Zone District and protect wildlife habitat may be applied to hotels in the F Zone District;
 - X. Population density allowed, including for all Affordable Housing required and/or requested, shall not exceed the density allowed for the acreage of the subject parcel at one (1) single-~~family household~~ residential unit per thirty-five (35) acres (except south of Wright's Mesa and Beaver Canyon);
 - XI. Sole access to the hotel parcel may not be achieved by aircraft, and all access roads must meet all applicable County road standards (except south of Wright's Mesa and Beaver Canyon); and
 - XII. The hotel parcel shall be deed restricted against any future subdivision (except south of Wright's Mesa and Beaver Canyon).
 - XIII. An existing hotel or guest ranch that is nonconforming solely because it includes density beyond that allowed pursuant to this Section 5-307 I is eligible to become a permitted use under this section, provided that the population density, including Affordable Housing for employees, is not increased.
- 5-307J. Airports, Cemeteries, Sanitary Land Fill Operations and Sewage Disposal Areas Standards
- In addition to complying with the standards for special uses in Section 5-10, airports, cemeteries, sanitary land fill operations and sewage disposal areas facilities shall comply with the standards in this section.
- I. Such uses shall serve an obvious public need;
 - II. Sufficient distance shall separate such uses from incompatible abutting properties; and
 - III. Satisfactory proof shall be given that such areas will be properly maintained.
- 5-307K. Single-~~family household~~ Dwellings over twelve thousand (12,000) square feet of Floor Area on a minimum of thirty-five (35) acres
- I. Such dwellings must include one (1) Caretaker ~~or Accessory~~ Dwelling Unit (~~depending upon Zone District~~), as provided in Section 5-1302-B.H.g and subject to

County R-1 Housing Deed Restriction and ~~ADU Secondary Residential Unit~~ Deed Restriction ~~and~~ Covenant, of at least eight hundred (800) square feet but no greater than two thousand (2,000) square feet. ~~for a Caretaker Unit and of at least seven hundred (700) square feet but no greater than eight hundred (800) square feet for an Accessory Dwelling Unit.~~

II. Submission Requirements

- a. A Site plan shall be provided including:
 - i. Building plan, including location and dimensions of structures;
 - ii. Typical elevations/heights of buildings;
 - iii. Topography;
 - iv. Existing landscaping and proposed landscaping plan;
 - v. Lighting plan; all exterior lighting shall comply with the standards of Section 5-710; and
 - vi. Existing structure and uses on adjacent parcels.
- b. Applicant shall address Land Use Code Section 5-21 Scenic Quality Standards. Each developer shall describe in detail how the visual impact of the proposed development on neighboring developments and public use areas shall be mitigated.

III. Review Standards

- a. Demonstration of compliance with the ~~most-current building and energy codes Prescriptive Energy Code and Green Building Standards~~ as adopted by Board of County Commissioners ~~Resolution 2005-44;~~
- b. Provisions to provide renewable energy sources such as, but not limited to, passive solar design, wind, geothermal, photovoltaic, hydrogen fuel cells, etc.;
- c. Parcel size and preservation of Open Space;
- d. The use shall be consistent with and compatible with the Character of the neighborhood of the parcel proposed for development and surrounding land uses;
- e. Compatibility with the Character of Parcels adjacent to the Parcel shall be expressed in terms of appearance, scale and features, Site design, landscaping, weed seed dispersal, as well as, the control and Minimization of adverse Impacts including Noise, vibration, dust, dirt, smoke, fumes, gas, odor, explosion, glare, Impacts on pedestrian and traffic congestion, parking, trash, service delivery, or other undesirable or hazardous conditions; and
- f. Demonstration of Compliance with Scenic Quality standards in Section 5-2101.